New Mexico AI Guidance for K-12 Education: Data and Student Privacy Passages

Excerpted verbatim from *New Mexico AI Guidance for K-12 Education 1.0 (New Mexico Public Education Department, Curriculum & Instruction Division, with the Friday Institute at NC State University, original publication May 1, 2025)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text. Passing mentions are labelled "(excerpt)". Two short passages were transcribed from rendered two-column layouts and are marked [graphic].

How to Use this Guidance (excerpt)

Source: unnumbered front matter (PDF page 4)

Designed to balance the innovative potential of AI tools with necessary safeguards around data privacy, academic integrity and human-centered values, this guidance offers actionable recommendations, resources and examples to empower New Mexico schools to leverage AI responsibly, preparing students for a technology-driven future.

District Spotlight: Gadsden Independent School District (excerpt)

Source: page 5

To ensure a safe and secure environment for students, the district collaborates with a private company to provide AI tools that include built-in safeguards and promote equitable access.

AI Literacy (excerpt)

Source: page 6

Prior to adoption or integration of any AI platforms, users should grasp the principles of AI systems, critically assess their ethical implications, such as privacy and bias, and make informed decisions about their use.

AI Literacy, Early Grades: Ethical Awareness (excerpt)

Source: page 7

Ethical Awareness | Foster critical thinking by discussing how AI can help or harm, emphasizing fairness, privacy and the importance of human oversight in a relatable way. For example, students can be guided to make responsible decisions by understanding when it is appropriate to use technology, learning how to verify the accuracy or reliability of AI’s responses, and understanding the personal data that might be collected and shared when online.

AI Literacy, Middle Grades: Exploring AI Ethics (excerpt)

Source: page 8

For instance, students can analyze scenarios such as biased hiring algorithms, autonomous vehicles making decisions in emergencies or the use of AI in surveillance. Small-group discussions can focus on balancing innovation with fairness, privacy and human rights.

Guiding Principles for AI (excerpt)

Source: page 10

AI should enhance learning and be used in ways that support educational equity, protect student data and maintain academic integrity.

Guiding Principles: Ethical and Responsible Use

Source: page 10

Prior to any AI purchase or implementation, educators must evaluate tools with a critical lens.

Data privacy | Students' and educators' data should be secure, and they should have control over how it is used. AI tools must comply with data protection laws and respect data sovereignty (where data are stored, who owns the data, and how or when the data is deleted).

Notice and explanation | Students and educators should know when AI is involved and how decisions are made. AI tools should have clear terms of use and user-friendly explanations.

The four-step approach to navigating the M.A.Z.E. of AI adoption may help educators to evaluate and select safe and effective online platforms: Monitor data privacy, Assess for accuracy, Zero-in on bias and Evaluate value.

Digital Learning and AI Integration in New Mexico (excerpt)

Source: page 11

A measured approach to evaluate and select safe, responsible and age-appropriate tools is necessary.

Digital Citizenship

Source: page 12

Providing students with skills and strategies to verify their sources of information, understand how the information they input into an AI system is used and ensure the materials they interact with are age appropriate is important for the health of their digital citizenship. This knowledge can also protect them from engaging with harmful media as well as exposing their own private lives or sensitive information online. Further, a guiding principle of digital citizenship is to not only keep students safe but also to develop skills in them that encourage them to use technology to be critical thinkers and active learners.

Learn about the impacts of AI on our world and ourselves from Tactical Tech's Data Detox Kit

Teaching ABOUT AI (excerpt)

Source: page 13 [graphic]

[graphic] For example, students might explore how algorithms function when they make user recommendations, examine AI's role in industries or discuss ethical concerns like privacy and fairness.

Policy & Governance for AI: Evolving Governance

Source: page 20 [graphic]

[graphic] Federal, state and local regulations are in development to address issues related to privacy, security, bias and transparency in AI tools and as new challenges emerge. Rules like FERPA and COPPA continue to provide a foundation regarding student data protections and parental consent.

Future Trends: Developing Responsible AI Products (excerpt)

Source: page 22

Product certifications from organizations like 1EdTech and Digital Promise help validate that AI tools meet data privacy, security and equity requirements.

Future Trends: Protecting Students' Data Sovereignty

Source: page 22

Student work, assessments and personal data should remain under the control of schools and communities rather than edtech companies. As AI tools access student work, it is critical to establish clear ownership, transparency and governance over where data is stored, who has access and how it is used. Schools should prioritize AI systems that operate on closed, secure servers and align with ethical data governance structures to protect student rights. Viewing student data as an irreplaceable resource, much like cultural knowledge, reinforces the need for policies that safeguard against misuse, ensuring AI supports learning without compromising privacy or autonomy.

Future Trends: Engaging Families and Communities (excerpt)

Source: page 22

Schools should offer resources and workshops to help families understand AI's role in learning, privacy and student development.